House Study Bill 117 - Introduced

HOUSE FILE _____
BY (PROPOSED COMMITTEE ON JUDICIARY BILL BY CHAIRPERSON HOLT)

A BILL FOR

An Act relating to court records for residential forcible entry and detainer actions and including effective date provisions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 648.22, Code 2025, is amended to read as follows:

648.22 Judgment — execution — costs — sealing of court records.

1. If the defendant is found guilty, judgment shall be entered that the defendant be removed from the premises, and that the plaintiff be put in possession of the premises, and an execution for the defendant's removal within three days from the judgment shall issue accordingly, to which judgment for costs shall be entered in the judgment docket and lien index, and to which shall be added a clause commanding the officer to collect the costs as in ordinary cases.

2. In a residential forcible entry and detainer action, the court records of the action shall be sealed not later than three days from the date of the order, if any of the following occurs:

a. The defendant is found not guilty.

b. The case is dismissed.

c. The plaintiff does not appear for the hearing.

3. In a residential forcible entry and detainer action, the court shall enter an order sealing the court records of the action not later than three days from the date of the order if, by motion or upon the court's own determination, the court finds there is no genuine issue of material fact between the parties.

4. Upon application of a defendant found guilty in a residential forcible entry and detainer action for nonpayment of rent, the court shall enter an order sealing the record of the action, the existence of the petition, all filings and documentation within the case file, and any associated writs of execution, if all of the following conditions are met:

a. More than seven years have passed since the date of the finding of guilt.

b. The applicant has not been found guilty in a subsequent forcible entry and detainer action in the five-year period

directly preceding the application.

c. The applicant has not previously been granted a sealing of a finding of guilt under this chapter within ten years prior to the application.

d. The applicant has paid all court costs, fees, fines, and any other financial obligation ordered by the court or assessed by the clerk of the district court in the case.

5. The application to seal the record of the action shall be included in the record the defendant wishes to seal, using a form prescribed by the supreme court.

6. In a residential forcible entry and detainer action for nonpayment of rent in which the defendant is found guilty, the court shall enter an order sealing the record of the action, the existence of the petition, all filings and documentation within the case file, and any associated writs of execution, if all of the following conditions are met:

a. The application is filed jointly by the plaintiff and defendant.

b. The defendant applicant has paid all court costs, fees, fines, and any other financial obligation ordered by the court or assessed by the clerk of the district court in the case.

7. Upon sealing, the existence of the petition, all filings and documentation within the case file, and any associated writs of execution shall be removed from any publicly accessible location under the direction of the judicial branch or county, as applicable. The clerk of court shall enter satisfaction of judgment in the judgment docket and lien index. Notwithstanding chapter 22, records sealed upon satisfaction of the requirements specified in this section shall not be available for public inspection except in one of the following manners:

a. Upon request by the defendant or the attorney for the defendant by filing a motion in the sealed case.

b. Upon application to the judicial branch using a form prescribed by the supreme court for scholarly, educational,

journalistic, or governmental purposes only, provided that in all cases, the names of minor children shall remain sealed at all times, and that the names and personally identifiable information of all persons named as defendants or included in the plaintiff's petition shall be redacted and remain sealed unless the court determines that release of such information is necessary to fulfill the scholarly, educational, journalistic, or governmental purpose of the request.

c. State court administration shall maintain a record in the aggregate of all filings and the final disposition of any such actions, to include dismissal, default judgment, and writs associated with disposition. State court administration shall make available to the public and report annually such aggregate information in such a manner prescribed by the supreme court as to protect the identity of the parties while still providing the public with information regarding eviction proceedings.

8. Subsections 4 through 7 do not apply to a money judgment awarded for an action that was filed with a forcible entry and detainer action or arising from the same set of facts and circumstances.

9. Subsections 3 through 7 do not create an independent cause of action by a tenant for use of lawfully obtained information.

Sec. 2. EFFECTIVE DATE. This Act takes effect July 1, 2026.

EXPLANATION

The inclusion of this explanation does not constitute agreement with the explanation's substance by the members of the general assembly.

This bill relates to sealing court records of residential forcible entry and detainer actions (eviction actions).

The bill requires a court to seal the court records of an eviction action not later than three days from the date of the order if any of the following have occurred: the defendant is found not guilty, the case is dismissed, the plaintiff does not appear for the hearing, or if, by motion or upon the court's own determination, the court finds there is no genuine issue of

material fact between the parties.

The bill provides that upon application of a defendant found guilty in an eviction action for nonpayment of rent, the court shall seal the court records if more than seven years have passed since disposition, the applicant has not been found guilty in a subsequent eviction action in the five-year period preceding the application, the applicant within the last 10 years has not been granted a sealing of eviction court records, and the applicant has paid all costs. The application to seal shall be included in the sealed court records.

The bill requires the court in an eviction action for nonpayment of rent in which the defendant is found guilty to enter an order sealing the court records if the application to seal is filed jointly by the plaintiff and defendant and the defendant has paid all court costs, fees, fines, and any other fees ordered by the court or clerk of the district court in the case.

The bill provides that upon sealing the court records, all filings, documentation, and writs of association shall be removed from any publicly accessible location. Sealed court records shall not be available for public inspection except upon request by the defendant or the attorney for the defendant by filing a motion in the sealed case or application to the judicial branch using a form to be prescribed by the supreme court for scholarly, educational, journalistic, or governmental purposes. The bill requires the state court administrator to maintain a record in the aggregate of all filings and to make such information available to the public in such a manner prescribed by the supreme court as to protect the identity of the parties while still providing the public with information relating to eviction actions.

Under the bill, certain provisions do not apply to an application to seal a record for an eviction action by a defendant found guilty when a money judgment has been awarded to the plaintiff.

Certain provisions of the bill relating to an application to seal do not create an independent cause of action by a tenant for use of lawfully obtained information.

The bill takes effect July 1, 2026.